ORDINANCE NO. ____________

An Ordinance Vacating A Street Beginning at the Southwest Corner of Lot 1 in Block 24, of Phillip's Addition to the City of Rector, Arkansas, run thence due East along the South boundary line of Lots 1 and 2 to the West boundary line (right of way line) of the St. Louis Southwestern Railroad (a/k/a Union Pacific Railroad) run thence Southwesterly along the West boundary line (right of way line) of the St. Louis Southwestern Railroad to the Northeast Corner of Block 27, run thence due West along the North boundary line of Block 27, a distance of 125 feet to the Northwest Corner of Block 27, thence due North to the Southwest Corner of Block 1, which is the point of beginning, Authorizing the City Recorder to Record said Ordinance in the Deed Records of the County.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

WHEREFORE, a petition was duly filed with the City Council of the City of Rector, Arkansas, on the ____ day of ____________________, 2005, asking the City Council to vacate and abandon all that portion of a street designated a street Beginning at the Southwest Corner of Lot 1 in Block 24, of Phillip's Addition to the City of Rector, Arkansas, run thence due East along the South boundary line of Lots 1 and 2 to the West boundary line (right of way line) of the St. Louis Southwestern Railroad (a/k/a Union Pacific Railroad) run thence Southwesterly along the West boundary line (right of way line) of the St. Louis Southwestern Railroad to the Northeast Corner of Block 27, run thence due West along the North boundary line of Block 27, a distance of 125 feet to the Northwest Corner of Block 27, thence due North to the Southwest Corner of Block 1, which is the point of beginning.

WHEREAS, after due notice as required by law, the City Council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that a street or the portion thereof, hereinbefore described, has heretofore been dedicated to the public use as a street herein described; that said street has not been actually used by the public generally for a period of at least five years subsequent to the filing of the plat; that all the owner of the property abutting upon the portion of a street to be vacated has filed with the Council his written consent to such abandonment; and the public interest and welfare will not be adversely affected by the abandonment of such street.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1. The City of Rector, Arkansas, hereby releases, vacates and abandons all its rights, together with the rights of the public generally, in and to a street designated as follows:

> Beginning at the Southwest Corner of Lot 1 in Block 24, of Phillip's Addition to the City of Rector, Arkansas, run thence due East along the South boundary line of Lots 1 and 2 to the West boundary line (right of way line) of the St. Louis Southwestern Railroad (a/k/a Union Pacific Railroad) run thence Southwesterly along the West boundary line (right of way line) of the St. Louis Southwestern Railroad to the Northeast Corner of Block 27, run thence due West along the North boundary line of Block 27, a distance of 125 feet to the Northwest Corner of Block 27, thence due North to the Southwest Corner of Block 1, which is the point of beginning.

SECTION 2. A copy of the ordinance duly certified by the City Recorder shall be filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the county and recorder in the deed records for the Eastern District of Clay County.

SECTION 3. This ordinance shall take effect and be in force from and after its passage.

Passed and approved by the City Council of the City of Rector, this ______ day of ________________, 2005.

Ron Kemp
Ron Kemp, Mayor

Attest:

____
City Clerk

State of Ark.
County of Clay
Acknowledge before me this 6th day of June 2005

My Commission Expires 9-13-2005
Betty Benson

BETTY BENSON
MY COMMISSION EXPIRES 13 SEPT 2005

NOTICE OF HEARING

Notice is hereby given that there has been filed in the Office of the City Recorder, Rector, Arkansas, a petition purporting to be signed by all the abutting land owner by and through his attorney, C. Joseph Calvin, to vacate a certain street within the City of Rector, Arkansas.

The petitioner states that he is the sole abutting land owner and that the said street has not been used for a period of five years from the date of this notice.

> Beginning at the Southwest Corner of Lot 1 in Block 24, of Phillip's Addition to the City of Rector, Arkansas, run thence due East along the South boundary line of Lots 1 and 2 to the West boundary line (right of way line) of the St. Louis Southwestern Railroad (a/k/a Union Pacific Railroad) run thence Southwesterly along the West boundary line (right of way line) of the St. Louis Southwestern Railroad to the Northeast Corner of Block 27, run thence due West along the North boundary line of Block 27, a distance of 125 feet to the Northwest Corner of Block 27, thence due North to the Southwest Corner of Block 1, which is the point of beginning.

Petitioner: Michael Lindsey

The City Council of the City of Rector has set the 6th day of June, 2005, the regular scheduled City Council Meeting, for a hearing on the above styled matter.

Dated: May 11, 2005

City Recorder

IN THE MATTER OF THE VACATING OF A
STREET IN THE CITY OF RECTOR, ARKANSAS
LOCATED IN THE PHILLIP'S ADDITION

Comes now the petitioner, Michael Lindsey, by and through his attorney, C. Joseph Calvin, and for his relief requests that the City of Rector vacate a certain street within the city limits. The petitioner state that he is the sole abutting landowner on each side of the proposed property and that said street has not been used for a period of five years from the date of this petition.

> Beginning at the Southwest Corner of Lot 1 in Block 24, of Phillip's Addition to the City of Rector, Arkansas, run thence due East along the South boundary line of Lots 1 and 2 to the West boundary line (right of way line) of the St. Louis Southwestern Railroad (a/k/a Union Pacific Railroad) run thence Southwesterly along the West boundary line (right of way line) of the St. Louis Southwestern Railroad to the Northeast Corner of Block 27, run thence due West along the North boundary line of Block 27, a distance of 125 feet to the Northwest Corner of Block 27, thence due North to the Southwest Corner of Block 1, which is the point of beginning.

WHEREFORE, petitioner prays that he be granted an ordinance vacating the above described street and further that the ordinance be filed with the clerk of said county and that ownership of said street shall revert to the abutting land owner to the center of said street.

DATED: 5/16/05

C. JOSEPH CALVIN
Attorney at Law
P.O. Box 196
201 East Ninth Street
Rector, Arkansas 72461
Phone (870) 595-3504

Attorney for the Petitioner,
Michael Lindsey

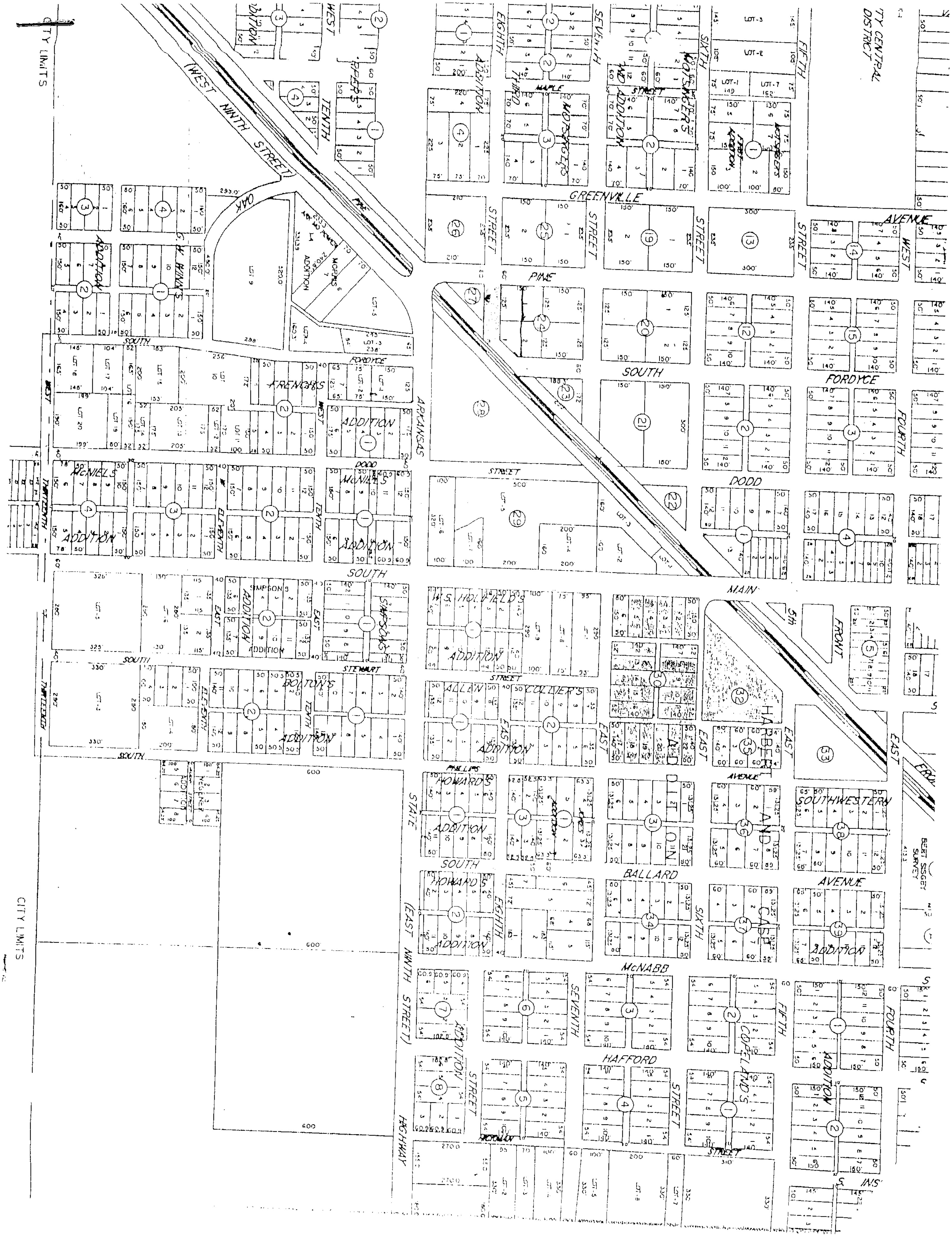
STATE OF ARKANSAS
COUNTY OF CLAY

Subscribed and sworn to before me this 16th day of May, 2005.

Notary Public

My commission expire:

CINDY BUCK
NOTARY PUBLIC
Commission Expires 1-25-2013


CITY LIMITS
WEST NINTH STREET
TENTH
EIGHTH
THIRD ADDITION
WOTSINGER'S
SEVENTH
2ND ADDITION
SIXTH
WOTSINGER'S
FIRST ADDITION
FIFTH
CITY CENTRAL DISTRICT
MAPLE
STREET
GREENVILLE
STREET
AVENUE
WEST
OAK
MORRIS ADDITION
G.W. HINK'S ADDITION
PINE
SOUTH
FORDYCE
FRENCH'S
ADDITION
WEST
ARKANSAS
SOUTH FORDYCE
FOURTH
DODD
STREET
McNIEL'S ADDITION
THIRTEENTH
ELEVENTH
McNIEL'S ADDITION
DODD
SOUTH
MAIN
5th
FRONT
SIMPSON'S ADDITION
EAST
SIMPSON'S
W.S. HOLIFIELD'S ADDITION
SOUTH
STEWART
STREET
BOLTON'S ADDITION
ALLEN
COLDIER'S
ADDITION
EAST
HARBERT AND CASE ADDITION
EAST
SOUTH
PHILLIPS
HOWARD'S ADDITION
AVENUE
SOUTHWESTERN
STATE
SOUTH
BALLARD
AVENUE
HOWARD'S ADDITION
EIGHTH
SIXTH
ADDITION
BERT SSGEY SURVEY
McNABB
SEVENTH
FIFTH
FOURTH
ADDITION
(EAST NINTH STREET)
STREET
HAFFORD
STREET
COPELAND'S
ADDITION
STREET
HIGHWAY
600
600
600